

Tentative Rulings and Resolution Review Hearings
March 10, 2025
Department 63

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court's website (www.shasta.courts.ca.gov) and are available by clicking on the "Tentative Rulings" link under the "Online Services" tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

Per Local Rule 5.13, telephonic appearances through CourtCall (888-882-6878; courtcall.com) are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

8:30 a.m. – Law & Motion

BANGHART VS. REDDING APPLIANCE CENTER, ET AL.

Case Number: 24CV-0204133

Tentative Ruling on Motions to Quash Document Subpoenas for Employment Records: Plaintiff Travis Banghart (hereinafter "Plaintiff") moves separately for an order quashing or in the alternative modifying Defendant Redding Appliance Center's (hereinafter "Defendant") subpoenas issued to Darrah Logging, Inc. (hereinafter "Darrah") and Apex Enterprises, Inc. (hereinafter "Apex"). Both motions contain nearly identical issues and will therefore be addressed together. Plaintiff also requests sanctions in the amount of \$3,135 for each motion.

Merits of Motion. A party may move for an order quashing a subpoena in its entirety, modifying it or directing compliance. CCP § 1987.1(a). The Court may also make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy. *Id.* A party may obtain discovery related to any matter, if the matter itself is admissible or reasonably calculated to lead to the discovery of admissible evidence. CCP § 2017.010. However, privileged information is not discoverable. CCP § 2017.010.

In determining whether one has waived the right of privacy by bringing suit, our Supreme Court has noted that although there may be an implicit partial waiver, the scope of such waiver must be narrowly, rather than expansively construed, so that plaintiffs will not be unduly deterred from instituting lawsuits by fear of exposure of private activities. An implicit waiver of a party's constitutional rights encompasses only discovery *directly relevant* to the plaintiff's claim and essential to the fair resolution of the lawsuit. There must be a compelling and opposing state interest justifying the discovery. Even when discovery of private information is found directly relevant to the issues of ongoing litigation, it will not be automatically allowed; there must then be a careful balancing of the compelling public need for discovery against the fundamental right of privacy. The scope of any disclosure must be narrowly circumscribed, drawn with narrow specificity, and must proceed by the least intrusive manner.

Davis v. Superior Ct. (1992) 7 Cal. App. 4th 1008, 1014.

Here, Plaintiff is seeking lost wages based on his various causes of action including wrongful termination. Defendant has alleged affirmative defenses related to a failure to mitigate damages. Accordingly, lost wages are

directly relevant to this action and Plaintiff has waived any privacy rights to these particular employment records. *Id.* Defendant has sought employment records from two of Plaintiff's subsequent employers. The subpoena seeks Plaintiff's personnel file, payroll records, benefit records, training and certification records and attendance records. Defendant has established good cause as to the payroll and benefit records. Their request is also narrowly tailored to the circumstances and appears to be the least intrusive manner of getting this information. The Court will order the subpoena to proceed as to the payroll and benefit records.

The remaining categories related to Plaintiff's personnel file, training and certification records and attendance records are not directly relevant to this proceeding. *Id.* These records would not show lost wages and are not directly relevant to this proceeding. Defendant takes the position that these records would relate to mitigation but that arguments lacks merit. Even if Defendant had sufficiently established their relevance, the information can be obtained through less intrusive means. For example, Defendant has provided excerpts from Plaintiff's deposition which shows that he testified to his efforts to mitigate damages by working for both employers subject to the subpoenas and by seeking other employment as well. The Court will modify the subpoenas to remove the requests for the personnel file, training and certification records and attendance records.

Sanctions: Plaintiff has requested sanctions on the grounds that Defendant's pursuit of the records is a misuse of the discovery process. CCP § 2023.030(a). While the Court will limit the scope of the subpoena, it does not find that a misuse of the discovery process has occurred. Sanctions will not be awarded.

The requests to quash the subpoenas is **DENIED**. The request to modify the scope of the subpoenas is **GRANTED**. The Court will limit the scope of both subpoenas only to the categories of payroll and benefit records. The request for sanctions is **DENIED**. A proposed order was lodged with the Court and will be modified to conform to the Court's final ruling.

Tentative Ruling on Motion to Quash Document Subpoena for Medical Records: Plaintiff Travis Banghart (hereinafter "Plaintiff") moves for an order quashing or in the alternative modifying Defendant Redding Appliance Center's (hereinafter "Defendant") subpoena issued to Docs Medical Group, Inc. (hereinafter "DMG"). Plaintiff also requests sanctions in the amount of \$3,135.

Merits of Motion. A party may move for an order quashing a subpoena in its entirety, modifying it or directing compliance. CCP § 1987.1(a). The Court may also make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy. *Id.* A party may obtain discovery related to any matter, if the matter itself is admissible or reasonably calculated to lead to the discovery of admissible evidence. CCP § 2017.010. However, privileged information is not discoverable. CCP § 2017.010.

In determining whether one has waived the right of privacy by bringing suit, our Supreme Court has noted that although there may be an implicit partial waiver, the scope of such waiver must be narrowly, rather than expansively construed, so that plaintiffs will not be unduly deterred from instituting lawsuits by fear of exposure of private activities. An implicit waiver of a party's constitutional rights encompasses only discovery *directly relevant* to the plaintiff's claim and essential to the fair resolution of the lawsuit. There must be a compelling and opposing state interest justifying the discovery. Even when discovery of private information is found directly relevant to the issues of ongoing litigation, it will not be automatically allowed; there must then be a careful balancing of the compelling public need for discovery against the fundamental right of privacy. The scope of any disclosure must be narrowly circumscribed, drawn with narrow specificity, and must proceed by the least intrusive manner.

Davis v. Superior Ct. (1992) 7 Cal. App. 4th 1008, 1014.

Here, Plaintiff's causes of action for wrongful termination, disability discrimination, failure to engage in interactive process etc. are all factually predicated on his disability, a hernia. Defendant is attempting to subpoena medical records from the medical provider that diagnosed the hernia and referred Plaintiff to a surgeon that Plaintiff has been unable to identify. Plaintiff has right of privacy in his medical records. See *Grafilo v. Wolsohn* (2019) 33 Cal.App.5th 1024, 1034. However, by filing the present suit he has waived any right in this records that are directly relevant to the plaintiff's claim and essential to the fair resolution of the lawsuit. *Davis, supra* 7 Cal.App.4th at 1014. The Court has reviewed the scope of the subpoena and finds that it seeks records directly relevant to Plaintiff's claims. The Court also finds that there is not a less intrusive means to obtain this information. The request to quash or modify the subpoena is denied.

Sanctions: Plaintiff has requested sanctions against Defendant based on alleged misuse of the discovery process. CCP § 2023.030(a). The Court is denying the request to quash and therefore no misuse has occurred. Defendant has also requested sanctions, alleging the present motion was brought in bad faith. While Defendant has ultimately prevailed in opposing the motion, the Court does not find that it was brought in bad faith. Sanctions will not be awarded.

The motion is **DENIED**. The requests for sanctions is **DENIED**. A proposed order was lodged with the Court and will be modified to conform to the Court's final ruling.

IN RE: BELL

Case Number: 24CV-0206587

Tentative Ruling on Petition for Change of Name: Petitioner Jacqueline Nicole Bell seeks to change her name to Jacqueline Nicole Wagner. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated and the file closed upon the processing of the Decree Changing Name.

BURBANK VS. STATE OF CALIFORNIA, ET AL.

Case Number: 24CV-0204945

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued on January 29, 2025 to Plaintiff Tina Burbank for her failure to timely serve the Complaint and Summons on defendants pursuant to CRC 3.110(b). "The complaint must be served on all named defendants and proofs of service on those defendants must be filed with the court within 60 days after the filing of the complaint." CRC 3.110(b). The Complaint in this matter was filed on May 8, 2024, and no Proof of Service of Summons has been filed. Plaintiff has not filed a written response to the Order to Show Cause.

The Court finds that Plaintiff has violated CRC 3.110(b). With no sufficient excuse for the delay, sanctions are imposed in the amount of \$250.00 against Plaintiff. The clerk is instructed to prepare a separate Order of Sanctions. The Court will issue an Order to Show Cause Re: Dismissal for failure to timely serve and failure to timely prosecute. Hearing on the Order to Show Cause Re: Dismissal will be **Monday, April 21, 2025 at 8:30 a.m. in Department 63**. The clerk is directed to issue the Order to Show Cause Re: Dismissal. The matter will be on calendar on **Monday, April 21, 2025 at 9:00 a.m. in Department 63** for review regarding status of service. The Court expects the matter to be served prior to the next hearing and proof of service filed with the court.

GUILES VS. FOX, MD, ET AL.

Case Number: 23CV-0202397

Tentative Ruling on Motion for Summary Judgment: Defendants Robert C. Fox, M.D. and Robert C. Fox, M.D., Inc. move for summary judgment in this medical malpractice action. Plaintiff Meryl L. Guiles filed an Opposition.